

SiyaBusa ERP

DATA PROCESSING AGREEMENT

Legal Documents

Masaphokati Technologies (Pty) Ltd

Document Version: 1.0

Effective Date: January 2026

Department: Legal

Classification: Confidential

WE RULE. WE GOVERN. WE EMPOWER.

DATA PROTECTION

POPIA-compliant data processing agreement for customer data handling.

Data Processing Agreement (DPA)

Effective Date: January 1, 2026

Version: 1.0

1. Introduction

1.1 Parties

This Data Processing Agreement ("DPA") is entered into between:

Masaphokati Technologies (Pty) Ltd ("Processor", "we", "us")

and

The Customer identified in the Master Services Agreement ("Controller", "you")

1.2 Background

This DPA supplements the Master Services Agreement ("Agreement") between the Parties and governs the processing of Personal Information by the Processor on behalf of the Controller in connection with the SiyaBusa ERP service ("Service").

1.3 POPIA Compliance

This DPA is designed to ensure compliance with the Protection of Personal Information Act, 2013 (POPIA) and related regulations. References to POPIA terms have the meanings defined in that Act.

2. Definitions

Term	Definition
Controller	The responsible party that determines the purpose and means of processing Personal Information (the Customer)
Data Subject	The natural or juristic person to whom Personal Information relates
Personal Information	Information relating to an identifiable, living natural person or existing juristic person, as defined in POPIA
Processing	Any operation concerning Personal Information, including collection, receipt, storage, use, disclosure, and destruction
Processor	The operator that processes Personal Information on behalf of the Controller (Masaphokati)
Security Compromise	A breach of security leading to unlawful access to Personal Information
Sub-processor	A third party engaged by the Processor to process Personal Information

3. Scope and Applicability

3.1 Scope

This DPA applies to all Processing of Personal Information by the Processor on behalf of the Controller in connection with the Service.

3.2 Nature of Processing

Element	Description
Subject Matter	Provision of SiyaBusa ERP software-as-a-service
Duration	Duration of the Agreement
Nature	Cloud hosting, storage, processing of ERP data
Purpose	To provide the Service as described in the Agreement

3.3 Categories of Personal Information

Personal Information processed may include:

Category	Examples
Employee Data	Names, ID numbers, contact details, salary information, leave records
Customer Data	Names, addresses, contact details, payment information
Supplier Data	Contact persons, banking details
User Data	Login credentials, activity logs

3.4 Categories of Data Subjects

- Employees of the Controller
- Customers of the Controller
- Suppliers and vendors
- Service users

4. Controller Obligations

4.1 Lawful Processing

The Controller warrants that:

4.1.1 All Personal Information provided to the Processor has been collected lawfully and fairly.

4.1.2 Processing by the Processor is authorized under applicable law.

4.1.3 Appropriate consent has been obtained where required.

4.1.4 Data Subjects have been informed of the Processing as required by POPIA.

4.2 Instructions

4.2.1 The Controller shall provide documented instructions for Processing.

4.2.2 The Agreement and this DPA constitute the Controller's initial instructions.

4.2.3 Additional instructions must be provided in writing.

4.3 Data Accuracy

4.3.1 The Controller is responsible for ensuring Personal Information is accurate, complete, and up to date.

4.4 Compliance

4.4.1 The Controller shall comply with all applicable data protection laws.

5. Processor Obligations

5.1 Processing Instructions

5.1.1 The Processor shall process Personal Information only:

- On documented instructions from the Controller
- As necessary to provide the Service
- As required by applicable law

5.1.2 If the Processor believes an instruction infringes POPIA, it shall promptly inform the Controller.

5.2 Confidentiality

5.2.1 The Processor shall ensure that persons authorized to process Personal Information:

- Are subject to confidentiality obligations
- Have received appropriate training on data protection
- Process Personal Information only as instructed

5.3 Security Measures

5.3.1 The Processor shall implement appropriate technical and organizational measures to protect Personal Information, including:

Technical Measures:

Measure	Implementation
Encryption at Rest	AES-256 encryption
Encryption in Transit	TLS 1.3
Access Control	Role-based access, MFA
Network Security	Firewalls, intrusion detection
Backup	Daily encrypted backups
Monitoring	24/7 security monitoring

Organizational Measures:

Measure	Implementation
Access Management	Least privilege, regular reviews
Employee Vetting	Background checks
Training	Annual security training
Policies	Information security policies
Audits	Annual security assessments

5.3.2 The Processor shall regularly review and update security measures.

5.4 Sub-processors

5.4.1 The Controller authorizes the Processor to engage Sub-processors listed in Appendix A.

5.4.2 Before engaging a new Sub-processor, the Processor shall:

- Notify the Controller at least 30 days in advance
- Provide details of the proposed Sub-processor
- Allow the Controller to object on reasonable grounds

5.4.3 The Processor shall:

- Enter into written agreements with Sub-processors imposing equivalent obligations
- Remain liable for Sub-processor compliance

5.5 International Transfers

5.5.1 The Processor shall not transfer Personal Information outside South Africa without:

- The Controller's prior written consent
- Ensuring adequate safeguards are in place

5.5.2 Adequate safeguards may include:

- Standard Contractual Clauses
- Binding Corporate Rules
- Adequacy decisions
- Other POPIA-compliant mechanisms

5.6 Assistance to Controller

5.6.1 The Processor shall assist the Controller with:

- Responding to Data Subject requests (access, correction, deletion)
- Security Compromise notification obligations
- Privacy impact assessments where required
- Consultation with the Information Regulator where required

5.6.2 The Processor may charge reasonable fees for assistance beyond the scope of the Service.

5.7 Data Subject Requests

5.7.1 If the Processor receives a request from a Data Subject:

- The Processor shall promptly notify the Controller
- The Processor shall not respond directly except as instructed
- The Processor shall provide reasonable assistance

5.8 Record Keeping

5.8.1 The Processor shall maintain records of Processing activities, including:

- Categories of Processing performed
- Transfers to third countries
- Description of security measures
- Sub-processor details

6. Security Compromise Notification

6.1 Notification to Controller

6.1.1 In the event of a Security Compromise, the Processor shall notify the Controller:

- Without undue delay
- Within 48 hours of becoming aware

6.1.2 The notification shall include:

- Description of the nature of the breach
- Categories and approximate number of Data Subjects affected
- Categories and approximate number of records affected
- Name and contact details of contact point
- Likely consequences of the breach
- Measures taken or proposed to address the breach

6.2 Cooperation

6.2.1 The Processor shall:

- Investigate the Security Compromise promptly
- Take reasonable steps to mitigate harm
- Cooperate with the Controller's investigation
- Provide updates as information becomes available

6.3 Regulatory Notification

6.3.1 The Controller is responsible for notifying the Information Regulator and Data Subjects as required by POPIA.

6.3.2 The Processor shall assist the Controller with such notifications.

7. Audits and Inspections

7.1 Audit Rights

7.1.1 The Controller may audit the Processor's compliance with this DPA:

- Upon reasonable notice (at least 30 days)
- No more than once per year (except in case of Security Compromise)
- During business hours
- Subject to confidentiality obligations

7.1.2 The Controller shall bear its own audit costs.

7.2 Audit Cooperation

7.2.1 The Processor shall:

- Make relevant information available
- Allow inspections of facilities and systems
- Provide access to relevant personnel
- Demonstrate compliance with this DPA

7.3 Third-Party Audits

7.3.1 The Controller may accept the following in lieu of direct audits:

- SOC 2 Type II reports
- ISO 27001 certification
- Other relevant certifications

7.3.2 The Processor shall provide copies of audit reports upon request.

8. Data Retention and Deletion

8.1 Retention Period

8.1.1 The Processor shall retain Personal Information only for the duration of the Agreement, unless:

- Required by applicable law
- Extended by written agreement

8.2 Return of Data

8.2.1 Upon termination or expiry of the Agreement:

- The Controller may export Personal Information for 90 days

- The Processor shall provide reasonable assistance with export

8.3 Deletion

8.3.1 Following the 90-day export period, the Processor shall:

- Securely delete Personal Information
- Delete all copies except as required by law
- Confirm deletion upon request

8.3.2 Deletion shall be performed in accordance with industry-standard secure deletion practices.

8.4 Backup Retention

8.4.1 Personal Information may remain in backups for up to 30 days after deletion.

8.4.2 Backups shall be securely destroyed according to the retention schedule.

9. Liability and Indemnification

9.1 Liability

9.1.1 Each Party is liable for damages caused by Processing that infringes POPIA.

9.1.2 Liability is subject to the limitations in the Agreement.

9.2 Indemnification

9.2.1 Each Party shall indemnify the other for fines, penalties, or damages arising from that Party's breach of this DPA.

10. Term and Termination

10.1 Term

10.1.1 This DPA commences on the Effective Date of the Agreement and continues until termination of the Agreement.

10.2 Survival

10.2.1 Provisions that by their nature should survive termination shall survive, including:

- Confidentiality obligations
- Data retention and deletion obligations
- Liability provisions

11. General Provisions

11.1 Conflicts

11.1.1 In the event of conflict between this DPA and the Agreement, this DPA prevails with respect to data protection matters.

11.2 Amendments

11.2.1 This DPA may be amended:

- In writing signed by both Parties
- By the Processor to reflect changes in applicable law (with notice)

11.3 Governing Law

11.3.1 This DPA is governed by the laws of South Africa.

Appendix A: Authorized Sub-processors

Sub-processor	Purpose	Location	Safeguards
Amazon Web Services (AWS)	Cloud infrastructure hosting	Cape Town, South Africa	Data Processing Addendum, ISO 27001
SendGrid	Email delivery	USA	Standard Contractual Clauses, Privacy Shield
PayFast	Payment processing	South Africa	PCI-DSS compliant
Zendesk	Customer support platform	USA	Standard Contractual Clauses

This list is current as of the Effective Date. Updates will be communicated per Section 5.4.

Appendix B: Technical and Organizational Measures

B.1 Technical Measures

Category	Measure	Details
Encryption	Data at Rest	AES-256 encryption
	Data in Transit	TLS 1.3
	Key Management	AWS KMS, regular rotation
Access Control	Authentication	Multi-factor authentication
	Authorization	Role-based access control
	Access Reviews	Quarterly access reviews
Network Security	Firewalls	AWS Security Groups, WAF
	Intrusion Detection	AWS GuardDuty
	DDoS Protection	AWS Shield
Monitoring	Logging	Comprehensive audit logging
	Monitoring	24/7 security monitoring
	Alerting	Automated security alerts
Backup	Frequency	Daily full backups
	Retention	30 days
	Testing	Monthly restore testing

B.2 Organizational Measures

Category	Measure	Details
Personnel	Background Checks	Pre-employment screening
	Training	Annual security awareness
	Confidentiality	Employee NDAs
Physical	Data Centers	AWS SOC 2 certified facilities
	Access	Biometric access controls
Policies	Information Security	Documented ISMS
	Acceptable Use	Employee policies
	Incident Response	Documented procedures
Audits	Internal	Annual internal audits
	External	Annual SOC 2 Type II

Signatures

Processor: Masaphokati Technologies (Pty) Ltd

Field	Value
Signature	
Name	
Title	
Date	

Controller: [Customer Legal Name]

Field	Value
Signature	
Name	
Title	
Date	

Document Control

Version	Date	Changes
1.0	January 1, 2026	Initial release

SiyaBusa ERP - Powering African Business

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